

Athens, 08-04-2024

Protocol No.: 1090

DECISION 14/2024

(Department)

The Hellenic Authority for the Protection of Personal Data convened, following an invitation from its President, in a regular session in the composition of a Department at its headquarters on 07.02.2024, in order to examine the case referred to in the background of this document. The session was attended via teleconference by the Deputy President of the Authority, Georgios Batzalexis, due to the absence of the President of the Authority, Konstantinos Menoudakos, who was also the rapporteur in the case, as well as the alternate members of the Authority, Demosthenes Bougioukas and Maria Psalla, replacing the regular members Konstantinos Lamprinouidakis and Grigorios Tsolias, who were absent due to impediments, although they were duly summoned in writing. Present at the session, without voting rights, were, by order of the President, Kalliopi Karveli, legal expert, as assistant rapporteur, and Irini Papageorgopoulou, employee of the Administrative Affairs Department, as secretary.

The Authority took into account the following:

A, a national of X (born ...), with his application No. A/EIS/5217/25-03-2022 to the Authority requested his removal from the National List of Undesirable Foreigners (hereinafter E.K.A.N.A.).

In response to the Authority's letter No. G/EKSE/2331/21.09.2022 for clarification regarding the existence of an entry in the aforementioned list, the Directorate of Aliens/Department of Administrative Measures of the Ministry of Citizen Protection in its letter No. G/EIS/4375/12.06.23 to the Authority stated the following:

1) By decision No. ... of the Three-Member Court of Appeal F, the applicant was sentenced to a prison term of ... years and a monetary penalty of ten thousand euros for the acts of importing into Greek territory, transporting, and possessing narcotic substances jointly, and simultaneously with the same decision, his lifelong deportation from the country was ordered. On ... he was deported by ferry through the Passport Control Office of Port Y. By decision No. ... of the Director of the Police Directorate Y, the applicant was registered in the E.K.A.N.A from ... to ... due to his judicial deportation, while by decisions No. ... and ... of the Director of the Police Directorate Y, his registration in the E.K.A.N.A was renewed and it was decided to maintain the registration until ..., on the grounds that the reasons for his registration still apply.

2) By decision No. ... of the Three-Member Misdemeanor Court F, the objections of the applicant regarding the execution of decision No. ... of the Three-Member Court of Appeal F were accepted, which it lifted regarding the aspect of judicial deportation. Following this, due to the lifting of the judicial deportation, on ... the applicant submitted a new request to the Police Directorate Y for his removal from the E.K.A.N.A. In a related letter, the Directorate of Aliens/A.E.A addressed the Appeals Prosecutor ... and requested opinions regarding the matter. In its response No. ... from ..., the Appeals Prosecutor F stated that there is no longer jurisdiction of the competent misdemeanor council to examine a request from a deported person wishing to be allowed to return to the country.

3) On ... the applicant submitted a request for remedy to the Police Directorate Y, which in its response dated ... stated that the request for remedy cannot be examined because according to Article 1 paragraph 2 of decision No. 4000/4/32-n' from 31.03.17, the competent authority cannot decide on the removal of the registration before the expiration of the period of prohibition of re-entry, which has been imposed by a judicial decision.

The Authority, after examining the aforementioned elements, heard the rapporteur and the clarifications from the assistant rapporteur, who then left, and after thorough discussion

CONSIDERED IN ACCORDANCE WITH THE LAW

1. According to Article 1 of Joint Ministerial Decision 4000/4/32-Ia/2012, as amended and in force with decision No. 4000/4/32-n/2017, "the National List of Undesirable Foreigners (E.K.A.N.A.) includes:

a. Foreigners against whom a judicial or administrative decision for deportation from the country or a

return decision has been issued, provided they have not complied with the obligation to return....."

Also, according to Article 3 paragraphs 1 and 2 of the same Joint Ministerial Decision: "1. The duration of the registration in the E.K.A.N.A. is determined by the authority deciding on the registration, based on the reasons for which it is imposed and does not exceed five (5) years. The aforementioned duration of registration in the E.K.A.N.A. may exceed five years in cases where the foreigner poses a serious threat to national security, public safety, or public order, as well as in cases where deportation and prohibition of re-entry of the foreigner into the Country is imposed by a criminal court decision, for as long as specified therein. Each case of registration in the E.K.A.N.A. is re-examined ex officio every three years.

2. The registration ceases to be valid automatically:

- a. Upon the expiration of the duration of validity of the registration decision.
- b. From the revocation or annulment of the administrative decision of deportation or return based on which the registration was made.

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γ. From the issuance of a decision by the competent Council of Misdemeanors allowing the foreign national's return to the country (paragraph 3 of article 74 of the Penal Code, as in force) and for the period specified in the decision.

δ. With the annulment of the judicial decision that imposed the deportation.

ε. From the suspension of the execution of the deportation or return decision by the competent court and for as long as this suspension lasts.

2. In the case under examination, from the elements of the file and the clarifications from the Directorate of Aliens/Department of Administrative Measures of the Ministry of Citizen Protection, it was established that the appellant A was registered in the E.K.A.N.A from ... to ... due to his judicial deportation, which was ordered by the decision number ... of the Three-Member Court of Appeal F. With the decisions number ... and ... of the Director of the Police Directorate Y, his registration in the E.K.A.N.A was renewed, and it was decided to maintain his registration until ..., on the grounds that the reasons for his registration still apply. By the decision number ... of the Three-Member Misdemeanor Court F, the objections of the appellant regarding the execution of the decision number ... of the Three-Member Court of Appeal F were accepted, and the deportation aspect was lifted. Consequently, according to the aforementioned provisions, since the registration of the appellant in the E.K.A.N.A was made due to his judicial deportation, and the judicial decision that imposed the deportation was lifted and annulled in this respect by the relevant decision ... of the Three-Member Misdemeanor Court F, his registration in the E.K.A.N.A automatically ceases to be valid according to the provisions of article 3 paragraph 2 of the Joint Ministerial Decision 4000/4/32-λα/2012, as amended and in force with the decision number 4000/4/32-v/2017.

Therefore, the appeal must be accepted.

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FOR THESE REASONS

The Authority

- 1) Orders the data controller to proceed with the deletion of A from the E.K.A.N.A and
- 2) Calls upon the data controller to inform the Authority and the appellant in writing regarding his actions for the execution of this decision within 15 days from its receipt.

The Deputy President The Secretary

Georgios Batzalexis Irini Papageorgopoulou